

Court No. - 40

Case :- WRIT - C No. - 15381 of 2018

Petitioner :- Sarva Deo Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Praveen Kumar Singh, Rupesh Kumar Singh

Counsel for Respondent :- C.S.C.

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner and Sri R.S. Umrao for the respondents.

The petitioner has come up praying for quashing of the recovery proceedings in respect of certain electricity dues which is alleged to be on account of an assessed consumption upon theft.

Learned counsel submits that an FIR was lodged under Section 135 of the Electricity Act, 2003 but the police has submitted a final report under Section 173(2) Cr.P.C., clearly stating that no offence has been committed by the petitioner. Learned counsel therefore submits that recovery proceedings for the same amount as arrears on account of a provisional assessment cannot be made.

There is no averment in the entire writ petition about any final assessment order having been passed. In the aforesaid circumstances, we are unable to gather about the status of any finality of the provisional assessment, the documents whereof are on record. If the provisional assessment has not been made final as yet in accordance with the procedure prescribed in law, it is open to the petitioner to approach the Executive Engineer concerned for an appropriate order of assessment. Even otherwise, if he is attempting to raise any billing dispute, he can approach the Executive Engineer in terms of Section 6.5 of the U.P. Electricity Supply Code, 2005.

We are, therefore, not inclined to interfere with the proceedings of recovery at this stage without prejudice to the rights of the petitioner to approach the Executive Engineer who may pass an appropriate order within three weeks of the presentation of the certified copy of the order. Any recovery proceedings shall abide by the orders to be passed by the Executive Engineer.

The writ petition is ***dismissed*** with the aforesaid directions.

Order Date :- 1.5.2018

S.Chaurasia